

FOOTE, et al v GOTTA LUV PIZZA, et al

24CV47525

PLAINTIFFS' MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

This matter involves a class action for wage and hour violations. Alison Foote, Jason Ross and Courtney Jones ("Plaintiffs") filed this class action lawsuit against Gotta Luv Pizza, Inc. dba Round Table Pizza #05 ("Defendants.") Plaintiffs bring causes of action for wage and hour violations, including failure to pay overtime wages, wage statement violations, waiting time penalties and unfair competition. Plaintiffs seek penalties and damages under the Labor Code, Business and Professional Code, and the Private Attorney General Act ("PAGA").

Plaintiffs report the matter has settled and move for preliminary approval of the settlement agreement ("Agreement"). (Code Civ. Proc., § 382, Cal. Rules of Court, rule 3.769.)

I. Settlement Approval Process

There are three stages to the Court's settlement approval process: (1) preliminary approval of the proposed settlement at an informal hearing; (2) notice of the settlement to all affected class members; and (3) final approval after a formal hearing. The current motion is the first stage of the process. The Court may approve settlements reached before or after certification of the class. (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 240, disapproved on another ground in *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260, 269.) Here, the class was not certified prior to the settlement, and Plaintiffs seek class certification at this time. The certification issue is addressed below.

When an action includes PAGA claims, the Court must review and approve the settlement and the proposed settlement shall be submitted to the Labor and Workforce Development Agency (LWDA) at the same time that it is submitted to the Court. (Lab. Code, § 2699, subd. (l)(2).) Plaintiffs has provided notice to the LWDA. (Declaration of Tyler J. Woods ("Woods Decl." ¶ 4.)

II. The Proposed Settlement

The terms of the Agreement provide that Defendant shall pay a Gross Settlement Amount (“GSA”) of \$450,000.00 to be allocated across approximately 353 Settlement Class Members. The settlement amount for each will be determined by dividing the Net Settlement Amount (“NSA”) by the total number of Workweeks worked by all Participating Class Members during the Class Period and then multiplying the result by each individual Participating Class Member’s Workweeks. (Agreement ¶ 3.2.4.)

Costs to be deducted from the GSA are: (1) a maximum of up to 1/3 of the GSA (\$150,000) and up to \$26,000 in costs to Plaintiffs’ counsel for services rendered; (2) an award of \$10,000.00 to the three named Plaintiffs as the class representatives; (3) up to \$7,500 to IYLM Group, Inc. for their fees and costs as settlement administrator; and (4) \$20,000 in PAGA penalties, with \$13,000 to be paid to the LWDA and \$7,000 added to the fund distributed to class members. (Agreement ¶ 3.2.5.)

After deductions, the estimated Net Settlement Amount (“NSA”) will be \$ \$216,500.00. Plaintiffs report there are approximately 353 Class Members, and the projected average individual payment will be approximately \$613.31. (Woods Decl. ¶ 26.) Class Members will not need to do anything to participate in the settlement and the gross settlement is non-reversionary.

III. Ascertainable Class

Under California law, the basic requirements to sustain a class action are an ascertainable class, a well-defined community of interest in the questions of law and fact involved, and substantial benefits from certification that render proceeding as a class superior to the alternatives. (Code Civ. Proc. § 382; *Brinker Restaurant Corp. v. Superior Court* (2012) 53 Cal.4th 1004, 1021.)

The Agreement defines the Class as “all current and former hourly non-exempt employees who performed work for Defendants in California during the Class Period.” (Agreement ¶ 1.5.) The “Settlement Class Period” is the period “from July 31, 2020, through the date on which the Court issues an order granting preliminary approval of the Settlement.” (*Id.* ¶ 1.13.) Additionally, the “PAGA Period” runs from June 21, 2023 to the date on which the Court issues an order granting preliminary approval of the Settlement. (*Id.* ¶ 1.33.) “Aggrieved Employees” means those Class Members who worked for Defendant within the PAGA Period. (*Id.* ¶ 1.4.)

Each PAGA Employee will receive a portion of the \$20,000 allocated as part of PAGA penalties, after deductions to the LWDA.

The Court finds the proposed Settlement Class is ascertainable and satisfies the numerosity requirement, that the action raises common wage and hour questions for

class members, and that Plaintiffs are adequate representatives of the class. The Court therefore conditionally certifies the proposed Settlement Class.

IV. Reasonableness of the Settlement

The purpose of preliminarily evaluating class action settlements is to determine whether the proposed settlement is within the “range of reasonableness” for possible approval, and whether it is worthwhile to issue notice to the class and schedule a formal hearing. (Cabraser, Cal. Class Actions and Coordinated Proceedings (2d ed. 2020) ¶ 14.02.) A presumption of fairness applies if there has been arm’s length bargaining, investigation has been sufficient to allow counsel and the court to act intelligently, class counsel is experienced in similar litigation, and the percentage of class members who object to the settlement is small. (*Ibid.*) “[P]re-certification settlements are routinely approved if found to be fair and reasonable.” (*Wershba v. Apple Computer, Inc.*, *supra*, 91 Cal.App.4th at p. 240.)

Plaintiff’s counsel reports that the parties engaged in an all-day, arm’s length mediation on August 27, 2025 before Hon. Carl J. West, an experienced mediator. (Woods Decl. ¶ 7.) Prior to mediation, the parties engaged in significant informal discovery, which included production of timekeeping and payroll data, and the employer’s written policies. (*Id.* ¶14.) Plaintiffs’ counsel has provided a declaration showing the class law firm has investigated and researched the claims in controversy, related documents and evidence, and the asserted defenses. Plaintiff’s law firm is experienced with this type of litigation and had sufficient data to make an informed decision regarding the fairness of the settlement. (*Id.* ¶¶ 39-40.) Based on the firm’s investigation, and balancing the risks and obstacles in the various claims, the class law firm has concluded that the proposed settlement is a favorable result for the Settlement Class. (*Id.* ¶ 27.) Having reviewed the claims at issue, Plaintiffs’ arguments in the memorandum of points and authorities, and the evidence submitted in support of the motion, the Court finds, for purposes of this preliminary approval, that the proposed settlement is fair and reasonable.

V. Notice

If the Court has certified the litigation as a class action, notice must be given to the class members and must contain an explanation of the proposed settlement, and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement. (Cal. Rules

of Court, rule 3.769(f).) Pursuant to California Rules of Court, rule 3.766(d), if class members are to be given the right to request exclusion from the class, the notice must include the following: (1) A brief explanation of the case, including the basic contentions or denials of the parties; (2) A statement that the court will exclude the member from the class if the member so requests by a specified date; (3) A procedure for the member to follow in requesting exclusion from the class; (4) A statement that the judgment, whether favorable or not, will bind all members who do not request exclusion; and (5) A statement that any member who does not request exclusion may, if the member so desires, enter an appearance through counsel.

Here, the proposed notice provides a background of the litigation and claims, sufficiently defines the class members, and informs them of the settlement and their respective rights. The proposed notice sets forth a breakdown of the settlement amount, including the total gross settlement amount, and the maximum amounts of the proposed deductions (i.e., class counsel's fees; class counsel's costs; settlement administrator's costs; representative plaintiff payment; and PAGA penalties). In addition, the proposed notice sets forth how each class member's payment will be calculated and further explains how class members can opt out of or object to the settlement. (Woods Decl., Ex. A.) Having reviewed the proposed notice, the Court finds that it complies with the California Rules of Court discussed above.

VI. Conclusion

Plaintiffs have satisfied the procedural requirements for preliminary approval of a class action settlement, and the settlement amount appears fair and reasonable at this stage. The Court grants preliminary approval of the settlement; appointment of Plaintiffs as the class representatives; appointment of Plaintiffs' counsel as class counsel; appointment of IYLM Group, Inc. as the third-party settlement administrator; and the proposed method and form of the notice. The Court also conditionally certifies the Settlement Class.

The Court sets the date for the final approval hearing of August 28, 2026, at 9:00 a.m. in Dept. 2..

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted proposed Order.

JP MORGAN CHASE BANK N.A. v WORMINGTON

25CF15463

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

This is an action by JP Morgan Chase Bank, N.A. ("Plaintiff") against Jones E. Wormington ("Defendant") for the collection of a credit card debt in the sum of \$6,690.96.

In his Answer, Defendant did not deny the allegations in the Complaint but asserted, as a defense, that he had previously tried to set up payment plan.

Now before the Court is Plaintiff's motion for judgment on the pleadings.

I. Legal Standard

A motion for judgment on the pleadings serves the same function as a demurrer but is made after the time for demurrer has expired. (Code Civ. Proc., § 438(c)(2); *Cloud v. Northop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.) Except as provided by statute, the rules governing demurrers apply. (*Id.*) The court must accept as true the factual allegations of the complaint and must give them a liberal interpretation. (*Gerawan Farming, Inc., v. Lyons* (2000), 24 Cal. 4th 468, 515-516.) In addition, the court is limited in its consideration to the face of the pleadings or matters entitled to judicial notice. (Code Civ. Proc. § 438(d).)

If the motion is granted in favor of the plaintiff, "it shall be based on the grounds that the complaint states facts sufficient to constitute a cause of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc. §438(c)(3)(a).)

II. Legal Analysis

A breach of contract claim requires: 1) the existence of a contract, 2) plaintiff's performance or excuse for nonperformance, 3) defendant's breach, and 4) the resulting damages to the plaintiff. (*San Mateo Union High Sch. Dist. v. Cnty. of San Mateo*, (2013) 213 Cal. App. 4th 418, 439.) "Where contract language is clear and explicit and does not lead to absurd results, we ascertain intent from the written terms and go no further." (*Shaw v. Regents of Univ. of Cal.*, (1997) 58 Cal. App 4th 44, 53.)

Plaintiff and Defendant entered into a contract for a consumer credit card. (Declaration of Yatzka Hoyos ("Hoyos Decl.") ¶ 3.) Pursuant to the contract, Plaintiff provided credit and Defendant used that credit to make consumer purchases. (*Id.* ¶ 4.) Defendant incurred charges, was provided statements detailing those charges, and did not object or deny that he had incurred those charges. (*Id.* ¶¶4-6.) However, Defendant stopped